

ORIGINAL

FEDERAL MARITIME COMMISSION

ADEBISI A. ADENARIWO

Claimant,

v.

BDP INTERNATIONAL, ZIM
INTEGRATED SHIPPING, LTD. AND ITS
AGENT (LANSAL) ET AL.

Respondents.

Informal Docket
No. 1921(I)

Served: July 27, 2016

BY THE COMMISSION: Mario CORDERO, *Chairman*,
Rebecca F. DYE, Michael A. KHOURI, William P. DOYLE, and
Daniel B. MAFFEI, *Commissioners*.

Order to File Supplemental Briefs

On February 20, 2014, the Federal Maritime Commission (FMC or Commission) issued an order affirming the Settlement Officer's (SO) determination that Zim Integrated Shipping, Ltd., (Zim) violated 46 U.S.C. § 41102(c) (section 10(d)(1) of the Shipping Act of 1984 (Shipping Act or Act)). 33 S.R.R. 223 (FMC

2014). The Commission also affirmed the award of \$18,308.94, plus interest, in reparations based on the finding that Mr. Adenariwo (Claimant) could have mitigated his damages by paying the charges invoiced by Zim and obtaining the release of his container, thereby avoiding the selloff of its contents. *Id.* at 224.

On March 21, 2014, Claimant filed a petition for review of the Commission's decision¹ with the U.S. Court of Appeals for the District of Columbia Circuit (Court). On December 15, 2015, the Court ordered that the Commission's decision to require mitigation of damages be vacated and the case remanded for further proceedings, specifically "the entry of an award by the Commission in favor of petitioner in the full amount of his unmitigated damages." *Adenariwo v. FMC*, 808 F.3d 74, 81 (D.C. Cir. 2015).

On April 28, 2016, the Commission issued an Order to File Supplemental Briefs. On June 14, 2016, Zim filed a supplemental brief. Claimant made no submission.

In light of the uncertainty surrounding Claimant having representation before the Commission (as he was represented by counsel before the Court), and the Claimant's propensity to respond when requested by the Commission in the past, the Commission is reopening its request for supplementary briefs. Claimant's brief (and Zim's response, if needed) should discuss appropriate damages to be awarded in Informal Docket No. 1921(I). Arguments should be supported by citation to the record. Absent demonstration of compelling circumstances, no new evidence will be admitted into the record.

The parties are reminded that under 46 C.F.R. § 502.23, an attorney must enter an appearance with the Commission before representing a party before the Commission. Even though Claimant

¹ Claimant also petitioned for review of the Settlement Officer's decision in a separate docket, Informal Docket No. 1920(I).

was represented before the Court, an entry of appearance must be filed with the Commission for proceedings in front of the Commission.

ORDER

THEREFORE, IT IS ORDERED, That, Claimant, Adebisi A. Adenariwo, has the option to file a supplemental brief on the appropriate reparation award amount no later than August 10, 2016; and

FINALLY, IT IS ORDERED, That, Respondent, Zim Integrated Shipping Ltd., has the option to file a response, if needed, no later August 17, 2016.

By the Commission.

Karen V. Gregory
Secretary